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JUDGMENT SHEET
IN THE LAHORE HIGH COURT
BAHAWALPUR BENCH BAHAWALPUR
(JUDICIAL DEPARTMENT)

Writ Petition No. 1562 of 2026

Dr. Muhammad Khurram Shahzad

Vs.

Government of the Punjab, etc.

Petitioner by:- Rai Abu Sufyan, Advocate

Respondents by: Mr. Jamshed Iqbal Khakwani,
Assistant Advocate General, Punjab.

Amir Mahmood, Litigation Officer,
Office of Chief Executive Officer,
District Health Authority,
Bahawalpur.

Date of hearing: - **13.04.2026**

JUDGMENT

RAHEEL KAMRAN, J:- Through this petition filed under Article 199 of the Constitution of Islamic Republic of Pakistan (“**the Constitution**”), the petitioner has prayed as under:-

“In view of the above, it is most respectfully prayed that by accepting this writ petition, the impugned advertisement Annexure-E wherein no such seat under 3% quota for disable persons is not published which is violation of section 31 of the Punjab Employment Persons with disability Act 2022 and the same may be declared as illegal, un-constitutional

The respondents may be directed to allocate 3% quota in the impugned advertisement Annexure-E for disable persons by issuing fresh advertisement, wherein the petitioner may be allowed to compete with recruitment process and may be considered for appointment against the post of MO/WMO under 3% quota for disable and he may be issued appointment letter against the said post in the interest of justice.

It is further prayed to suspend further recruitment process to the extent of disabled quota till final decision of this petition.”

2. The facts as set forth in the writ petition, precisely are that the petitioner is a duly qualified medical doctor and a person suffering from permanent disability on account of a spinal cord injury, hence he is fully eligible for appointment to the post of Medical Officer. It has been averred that the Provincial Cabinet in its meeting held on 15.12.2025, approved the Punjab Primary and Secondary Healthcare Services (Secondary Level Human Resource) Rules, 2025 along with the creation of 2115/- posts under a Special Pay Package for the hiring of secondary-level human resources in the Health and Population Department for the financial year 2025–26. Pursuant to the said approval, an advertisement bearing No. SPL:3119 was issued for recruitment against the aforesaid 2115/- posts of Medical Officers/Women Medical Officers, however, no quota was specified therein for persons with disabilities in violation of the constitutional and statutory mandate for such persons in public employment. It has further been asserted that the petitioner, in terms of the conditions stipulated in the advertisement, applied for the said post on open merit and also appeared in the written examination conducted in that regard.

3. Learned counsel for the petitioner contends that in terms of Section 31 of the Punjab Empowerment of Persons with Disabilities Act 2022, reservation of not less than 3% quota in public sector employment is mandatory and binding upon all departments of the Government of Punjab. It is argued that the respondents, while undertaking recruitment against the advertised posts, have failed to properly earmark and implement the said quota, thereby rendering the process illegal, arbitrary and discriminatory. Reliance is placed upon order dated 13.01.2026 passed in F.C.P.L.A. No.16 of 2025 as well as the judgment of the august Supreme Court of Pakistan in a case law titled as “Peerzada Waqar Aslam v. National Accountability Bureau (NAB) through Chairman, Islamabad and others” (2023 SCMR 742). It is further contended that

such omission infringes the fundamental rights guaranteed under the Constitution of the Islamic Republic of Pakistan, 1973.

4. A report on behalf of respondent No.2 has been submitted stating that the Provincial Cabinet approved the Punjab Primary and Secondary Healthcare Services (Secondary Level Human Resource) Rules, 2025, along with creation of 3,115 posts of Medical Officers/Women Medical Officers on special pay package. In pursuance thereof, the Department advertised the first phase on 28.12.2025, against which 10,657 candidates applied. The candidates were screened through NTS with 50% qualifying threshold, whereafter 7,007 candidates were shortlisted and 1,469 were selected on the basis of composite merit comprising NTS scores, academic qualifications, experience and preference of posting. It is stated that some selected candidates did not join. The petitioner applied in the first phase but failed to qualify, having secured 46 marks in the NTS test. Subsequently, another advertisement dated 12.03.2026 for 1,000 posts was issued with last date to apply as 24.03.2026, wherein the petitioner has again applied and the process is under evaluation. It is further stated that the department has announced and invited applications from the candidates till 15.04.2026 who are eligible to apply in provincial quota vide letter dated 02.04.2026 wherein last date for applying is 15.04.2026 and that approximately 1000 seats are available to offer in the new advertisement as per policy, whereas 646 posts are yet to be advertised. In the parawise comments, particularly in response to ground No. XIV, it has been stated that a corrigendum has already been issued and the grievance of the petitioner stands addressed.

5. On the strength of the said report as well as subsequent correspondence between the office of respondent No.2 and the Additional Advocate General (Admin) Bahawalpur, the learned Assistant Advocate General, Punjab submits that the department has duly calculated and allocated the requisite 3% quota for persons with disabilities. It is contended that the total general seats have been

computed and the corresponding quota has been worked out and accordingly, advertisement has been published by extending the date of application upto 15.04.2026 so as to afford adequate opportunity to all eligible candidates including persons with disabilities. The learned Law Officer has submitted the computation as under:-

i. Special Person Quota

Total General Seats 1453 (Phase-1) + 1008 (Phase-2) = 2461
3% for Special Persons = 74

ii. Minority Quota

Total General Seats = 1453 (Phase-1) + 1008 (Phase-2) = 2461
5% for Minorities = 123

2. It is further submitted that out of 1519 total posts in Phase-1, 718 Women Medical Officer ("WMO") have already been recommended which is more than 15% The applicable women quota seats in Phase-2 are as under:-

Total General Seats = 1008
15% Women Quota = 152

6. Having heard learned counsel for the parties and going through the available material with their assistance, it has been noticed that the core grievance of the petitioner pertains to non-observance of the mandatory 3% quota for persons with disabilities in the advertisement dated 28.12.2025 issued by the respondents in the first phase of recruitment. A careful reading of the report submitted on behalf of respondent No.2 reveals that while the respondents have elaborated the recruitment process undertaken in the first phase, there is no categorical denial of the petitioner's assertion that the said advertisement did not provide for or reflect the statutory quota for persons with disabilities. On the contrary, the stance taken in the report indicates that the said quota is being observed in the subsequent phase of recruitment through further communications dated 02.04.2026. Significantly, these steps post-date the filing of the instant petition on 17.02.2026 and even the issuance of notice by this Court on 18.03.2026. This sequence of events lends credence to the petitioner's contention that the omission in the initial advertisement was not in consonance with the governing legal framework. The plea raised in the parawise comments that a corrigendum has been issued and the grievance stands addressed, does not fully answer the petitioner's challenge, particularly with regard to the

legality of the initial advertisement and the petitioner's right to be considered against the reserved quota at the relevant time. The subsequent corrective measures, though indicative of an acknowledgment of the statutory requirement, cannot *ipso facto* validate the earlier omission or negate its legal consequences. Thus, *prima facie* the report itself supports the inference that the 3% quota for persons with disabilities was not expressly provided either in the first phase advertisement or even in the initial second phase advertisement dated 12.03.2026 and that its incorporation in the later stage appears to be a post hoc measure undertaken after initiation of the present proceedings.

7. It would be advantageous at this stage to examine the constitutional philosophy underpinning the concept of reservation in public employment, particularly in respect of persons with disabilities. Article 9 of the Constitution guarantees right to life, which enshrines that *no person shall be deprived of life or liberty save in accordance with law*. Through consistent judicial interpretation, right to life has been expansively construed to encompass the right to livelihood¹. Employment, in this sense, is not merely a source of income but a vital instrument of self-reliance, social integration and personal dignity. For persons with disabilities, access to employment assumes even greater significance as it enables them to overcome societal exclusion and assert their autonomy as equal citizens.

8. Safeguard against discrimination in service has been provided in Article 27 of the Constitution, which reads as under:-

“27. (1) No citizen otherwise qualified for appointment in the service of Pakistan shall be discriminated against in respect of any such appointment on the ground only of race, religion, caste, sex, residence or place of birth:

Provided that, for a period not exceeding forty years from the commencing day, posts may be reserved for persons belonging to any class or area to secure their adequate representation in the service of Pakistan:

¹ “The Province of Punjab through Secretary, Finance Department, Government of the Punjab, Lahore and others v. Kanwal Rashid and others” (2021 SCMR 730), “Divisional Superintendent, Pakistan Railways and another v. Umar Daraz” (2023 SCMR 761).

Provided further that, in the interest of the said service, specified posts or services may be reserved for members of either sex if such posts or services entail the performance of duties and functions which cannot be adequately performed by members of the other sex. Provided also that under-representation of any class or area in the service of Pakistan may be redressed in such manner as may be determined by an Act of Parliament.

(2) Nothing in clause (1) shall prevent any Provincial Government, or any local or other authority in a Province, from prescribing, in relation to any post or class of service under that Government or authority, conditions as to residence in the Province, for a period not exceeding three years, prior to appointment under that Government or authority.”

The above Article guarantees equality of opportunity in matters of public service while at the same time permitting the State to make special provisions for the advancement and adequate representation of classes that are otherwise marginalized or underrepresented.

9. To promote and ensure effective inclusion of persons with disabilities in the community and to protect their rights, The Punjab Empowerment of Persons with Disabilities Act, 2022 (“the Act of 2022”) was enacted. For reference, preamble of the Act of 2022 is reproduced below:

“An Act to promote and ensure effective inclusion of persons with disabilities in the community and to protect their rights. It is necessary to promote and ensure effective inclusion of persons with disabilities in the community; to protect their rights in line with the Constitution of the Islamic Republic of Pakistan, the United Nations Convention on the Rights of Persons with Disabilities and the international best practices; and to provide for the matters ancillary thereto.”

The preamble of the said Act reflects that the Act has been enacted to provide for the empowerment, inclusion, rehabilitation and protection of the rights of persons with disabilities and to ensure their full and effective participation in all spheres of life on an equal basis with others. The Act aims to eliminate discrimination, promote

accessibility and create enabling conditions for persons with disabilities to live independently with dignity. It further seeks to align the legal framework with international commitments particularly the United Nations Convention on the Rights of Persons with Disabilities (CRPD), thereby obligating the State to adopt a rights-based approach in safeguarding and advancing the interests of persons with disabilities.

10. Section 31 of the Act of 2022 is couched in imperative terms and obligates all public sector departments to reserve not less than 3% of posts for persons with disabilities. Section 31 *ibid* read as under:

“31. Establishments to employ persons with disabilities.- (1) *Not less than three percent of the total number of persons employed by an establishment at any time shall be persons with disabilities;*
 (2) *The recruitment against reserved posts under subsection (1) shall be made in accordance with the procedure, criteria and qualification as may be notified by the Council from time to time for each category of persons with disabilities: provided that persons with short-term or temporary disabilities shall remain unqualified for recruitment against the posts reserved under subsection (1); provided further that the reserved posts shall be divided equally amongst visually impaired persons, hearing impaired persons, persons with other physical disabilities, and intellectually impaired persons.*
 (3) *When calculating the percentage of the posts in an establishment for the purposes of employment of Persons with Disabilities, the fraction of 0.5 and above shall count as a whole number.*
 (4) *Such persons with disabilities whose names have been registered with the Unit and declared fit to work shall be employed by the establishments as per quota mentioned in subsection (1).*
 (5) *A person with a disability employed against any post in pursuance of subsection (1) shall be entitled to such terms and conditions as are not less favorable than those of the other persons employed by the establishment against similar posts.”*

The above Section lays down a comprehensive framework for inclusion of persons with disabilities in public and private sector employment. The use of the expression “shall” in the sub-section (1) *ibid* leaves no room for discretion, as such the provision must be construed as mandatory in both letter and spirit. The legislative intent behind the provision is not

merely symbolic compliance but substantive inclusion through enforceable participation in public employment. It obligates every establishment to ensure that at least 3% of its total workforce comprises persons with disabilities, thereby creating a binding statutory quota. The provision further regulates the manner of recruitment by requiring that appointments against such reserved posts be made in accordance with prescribed procedures, criteria and qualifications notified by the competent authority, while excluding persons with temporary disabilities from eligibility. It also ensures equitable distribution of reserved posts among different categories of disabilities including visually impaired, hearing impaired, physically disabled and intellectually impaired persons.

11. This Court in the case of *“Muhammad Yousaf and another v. Chairman, Federal Public Service Commission and others”* (PLD 2017 Lahore 406) observed that the persons with disabilities are deprived of the social and economic benefits enjoyed by other citizens and tend to live or survive on the margins of the society. Relevant excerpt from the said judgment is as under:

“26. While the constitutional values and fundamental rights under the Constitution do not distinguish between a person with or without disabilities, the Constitution goes further. It provides that adequate provisions shall be made to safeguard the legitimate interests of the minorities and backward and depressed classes. Depressed class has not been defined under the Constitution. So in our society, where State does not provide any meaningful infrastructural, financial or social support for persons with disabilities, persons with disabilities are marginalized, under-privileged, lacking choice, autonomy and opportunity; resulting in limited access to employment and good quality of life. They stand deprived of the social and economical benefits enjoyed by other citizens and tend to live or survive on the margins of the society.”

Therefore, inclusion of persons with disabilities in the workforce is not merely a matter of compliance with statutory provisions but is intrinsically linked with broader goals of human capital development, social justice and economic progress. A significant segment of the

population comprises persons with disabilities, many of whom are of working age and possess the requisite qualifications and capabilities to contribute meaningfully to national development if afforded appropriate opportunities. Exclusion from employment not only deprives such individuals of financial independence but also adversely affects their sense of dignity, self-worth and social integration. Conversely, their inclusion in public service enhances institutional diversity, promotes a culture of empathy and equality and yields tangible socio-economic benefits not only for the individuals concerned but also for their families and society at large.

12. It must be emphasized that modern jurisprudence has shifted from a charity-based approach to a rights-based paradigm, wherein disability is not viewed as an inherent limitation of the individual but as a consequence of societal and structural barriers that impede equal participation. In this perspective, it becomes the obligation of the State to dismantle such barriers and to create enabling conditions through affirmative measures, including reservation in employment. The right to employment for persons with disabilities thus stands on the same constitutional footing as that of other citizens, emanating from the guarantees of equality, dignity and the right to livelihood. Any denial or dilution of such opportunity perpetuates exclusion and undermines the constitutional vision of an inclusive and egalitarian society. Furthermore, international commitments, particularly those flowing from the United Nations Convention on the Rights of Persons with Disabilities reinforce the obligation of the State to promote employment, eliminate discrimination and ensure accessibility in all spheres of public life. In this backdrop, it is incumbent upon public authorities to adopt a proactive, sensitive and rights-oriented approach in implementing recruitment policies, so that persons with disabilities are not relegated to the margins but are enabled to participate fully and effectively in the mainstream of national life. Guidance has been sought from the judgment of the Supreme Court of Pakistan in the case of

“Peerzada Waqar Aslam v. National Accountability Bureau (NAB) through Chairman, Islamabad and others” (2023 SCMR 742). The relevant extract from the said judgment is as under:-

“8. It is important for the public and private sector institutions (including NAB) to understand that within Pakistan, the population of persons with disabilities (PWDs) varies between 3.3 million to 27 million. The World Health Organization. (WHO) has stated that an estimated 16% of the global population experiences significant disabilities today, most of whom are of working age. As such, it remains pivotal to consider the importance of PWDs towards human capital development, particularly towards employment. Should inclusion and accessibility be made towards employment there would be improvements at the societal level and for the families of PWDs. Employment is important to all persons, without which inclusion in society and economic freedom would not be possible. Without employment, there is a greater risk of detrimental effects to the physical and mental health of the individual. Work and contribution to society has been central to human society and holds great power over the self-esteem of those participating in society. For PWDs this would be greater given the stigmatization typically associated with them. The social model views disability in the context of systematic barriers, social exclusions, and negative societal attitudes leading to the loss or limitation of opportunities to participate in political, economic, and social activities on equal footing with those who do not have disability.

9. Employment of PWDs is not a charity but a right. Our constitutional values of equality and social justice, the fundamental rights to life, to carrying out a profession and to non-discrimination also extend to PWDs and make no distinction between PWDs and others. Therefore, any law or policy relating to PWDs is rights-based and is not to be viewed as charity or pity or mercy. The universality, indivisibility, interdependence and interrelatedness of constitutional values and fundamental rights fully encompass the persons with disabilities and guarantees them full protection without discrimination.

10. Further, the United Nations Convention on Rights of Persons with Disabilities (CRPD), to which Pakistan is a party, protects the right of PWDs, in particular, their right to employment. It states that employment and career advancement of PWD's is to be promoted, and discrimination based on disability in all forms of employment is prohibited. 10 It is high time

that public and private sector institutions in Pakistan wake up to this realization and protect the constitutional and legal rights of the persons with the disabilities in the country and extend them the care, sensitivity and priority they deserve in their policies and executive decisions.

13. In view of the above, there remains no doubt that Section 31 of the Act of 2022 is mandatory in nature and is required to be complied with in its true letter and spirit by every public sector department at the time of recruitment. Any failure to effectively implement such quota does not remain a mere procedural lapse but strikes at the heart of constitutional protections, depriving a vulnerable segment of society of its rightful share in public employment. It is, therefore, incumbent upon the State and its functionaries to ensure that such measures are not only formally provided but are meaningfully operationalized in a transparent, fair and accessible manner.

14. An aspect of considerable significance pertains to the genuineness and effectiveness of the remedial steps claimed to have been undertaken by the respondents. Although in the report submitted on behalf of respondent No.2, it has been asserted that vide letter dated 02.04.2026 applications have been invited from eligible candidates till 15.04.2026 under the relevant quota, yet such assertion in its present form appears to be insufficient to fully redress the grievance at large. The record reflects that the initial advertisement dated 28.12.2025 was duly published through multiple newspapers, thereby ensuring wide dissemination of information to the general public and enabling all eligible candidates to participate in the recruitment process. In stark contrast, there is nothing on record to demonstrate that the subsequent letter dated 02.04.2026 purportedly issued to incorporate or operationalize the quota for persons with disabilities, was published or circulated through any recognized or effective medium so as to reach the intended class of candidates. It is by now well settled that in matters relating to public employment, transparency, fairness and equal opportunity are the foundational principles and any recruitment process

must not only be substantively compliant with the law but must also appear to be so in its procedure. Mere internal correspondence or issuance of a departmental letter, without its proper publication and wide circulation in the shape of corrigendum of advertisement inviting application from candidates, cannot be equated with a public advertisement nor can it be presumed that all eligible candidates, particularly those belonging to a marginalized class such as persons with disabilities, would have knowledge thereof. The absence of proper publication, therefore, undermines the very objective of reservation policy, which is to ensure meaningful and effective participation of such persons in public service. In these circumstances, while the step taken by the respondents may *prima facie* indicate an attempt to address the omission, the manner of its implementation falls short of the requirements of law.

15. For the foregoing reasons, the respondents are directed to re-initiate the recruitment process to the extent of the reserved quota, particularly for persons with disabilities, by inviting applications on the basis of computation submitted by the learned Assistant Advocate General, Punjab, as reflected in paragraph No.5 of this judgment by publication of a fresh and comprehensive advertisement on official websites of the concerned department, testing agencies, in widely circulated Urdu and English dailies and through other appropriate media platforms so as to ensure transparency, wider dissemination and meaningful participation of all eligible candidates, with reasonable time afforded for submission of the applications.

16. The instant petition in essence seeks not only the enforcement of statutory right granted under Section 31 of the Act of 2022 but also the fundamental rights enshrined under Articles 9, 14 and 27 of the Constitution as the same have direct nexus *inter se*. The scope of direction under Article 199(1)(c) of the Constitution is larger than the direction in the nature of mandamus. Reliance in this regard is placed on the case of “Human Rights Commission of Pakistan and 2 others v.

Government of Pakistan and others” (PLD 2009 SC 507). The relevant extract from the said judgment is reproduced hereunder:-

“33. The reach of clause (c) however is wider. It not merely enables a Court to declare an action of a State functionary inconsistent with fundamental rights to be unlawful but also enables the Courts to practically enforce such rights by issuing appropriate directives as is evident from its language. ...”

17. Before parting with this judgment, it is observed that faithful implementation of such statutory mandates is not only a legal obligation but a constitutional imperative. The State must act as a facilitator of inclusion, ensuring that no segment of society is left behind in the march towards equality, dignity and justice. The Office is directed to transmit a copy of this judgment to the Chief Secretary, Punjab, who shall ensure its circulation to all Administrative Secretaries of the Government of the Punjab for strict compliance, so that in future all recruiting authorities adhere to the mandatory requirement of quota reserved for persons with disabilities at the time of advertisement and appointments in terms of Section 31 of the Punjab Empowerment of Persons with Disabilities Act, 2022.

18. This petition is disposed of accordingly.

(RAHEEL KAMRAN)
JUDGE

Approved for reporting.

JUDGE